



Class 9 2022-23

CONSTITUTIONAL DESIGN

Ch 2 | Class 9 S.St. (Civics)

Handwritten Notes & Imp Questions



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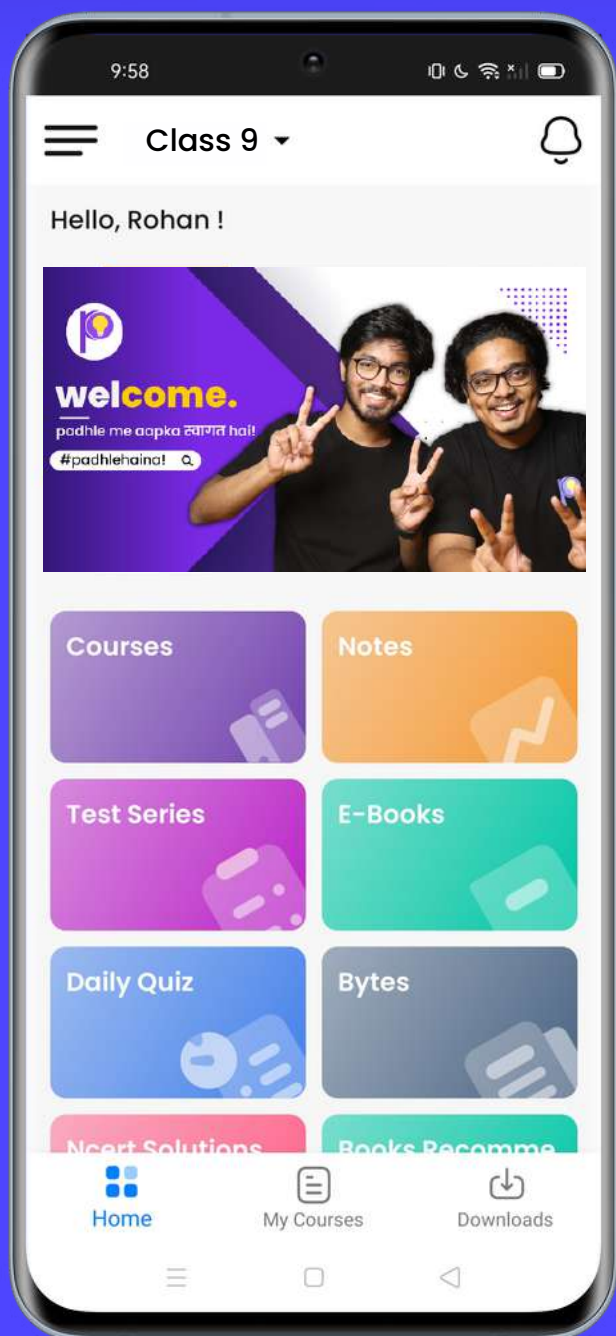
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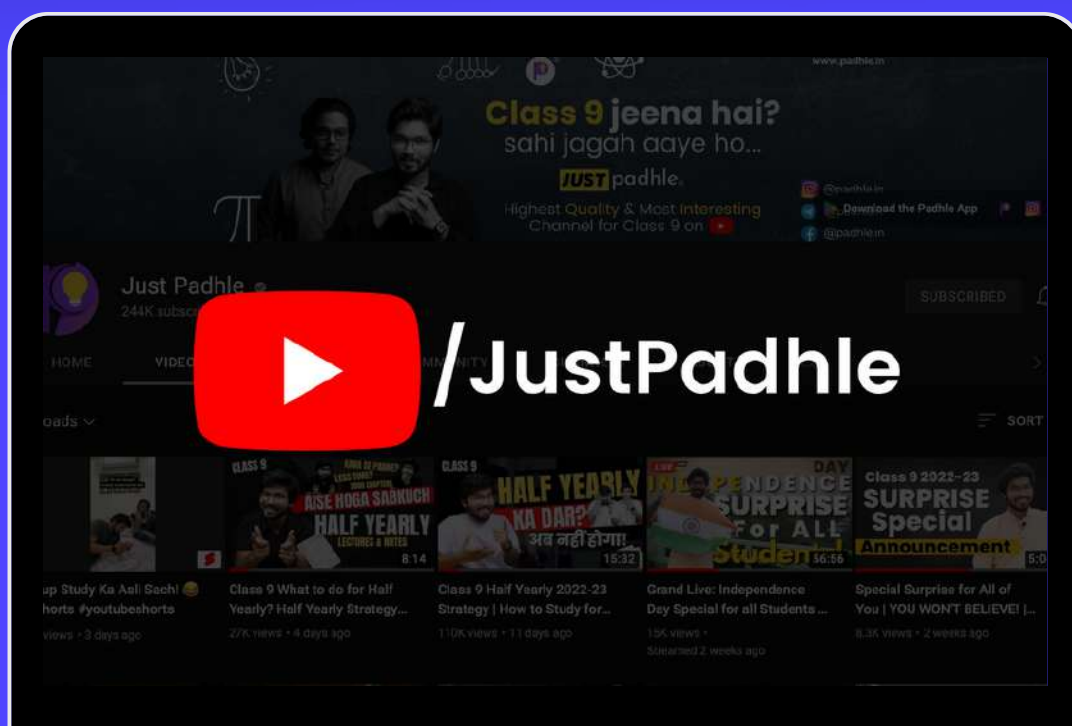
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CONSTITUTIONAL

DESIGN

Overview

- We noted in the previous chapter that in a democracy the rulers are not free to do what they like.
- There are certain basic rules that the citizens and the government have to follow.
- All such rules together are called constitution.
- As the supreme law of the country, the constitution determines the rights of citizens, the powers of the government and how the government should function.

Questions to be Answered

- Why do we need a constitution?
- How are the constitution drawn up?
- Who designs them and in what way?
- What are the values that shape the constitutions in democratic states?
- Once a constitution is accepted, can we make changes later if required?

Democratic Constitution in South Africa

"I have fought against white domination and I have fought against black domination. I have cherished the ideal of a democratic and free society in which all persons live together in harmony and with equal opportunities. It is an ideal which I hope to live for and to achieve. But if needs be, it is an ideal for which I am prepared to die."

~ Nelson Mandela

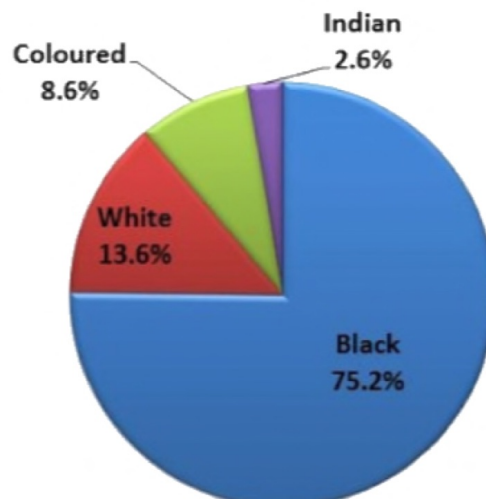
- This was Nelson Mandela, being tried for treason by the white South African government.
- He and seven other leaders were sentenced to life imprisonment in 1964 for daring to oppose the apartheid regime in his country.
- He spent the next 28 years in South Africa's prison.

Struggle against Apartheid

- ▶ Apartheid was the name of a system of racial discrimination unique to South Africa.
- ▶ The white European imposed this system on South Africa.
- ▶ During the 17th and 18th centuries, the trading companies from Europe occupied it with arms and force, in the way they occupied India.
- ▶ But unlike India, a large number of 'whites' had settled in South Africa and became the local rulers.

Apartheid divided the people and labelled them on the basis of their skin colour.

- ▶ The native people of South Africa are black in colour.
- ▶ They made up about three-fourth of the population and were called 'blacks'.
- ▶ Besides these two groups, there were people of mixed races who were called 'coloured' and people who migrated from India.



- ▷ The white rulers treated all non-whites as inferiors.
- ▷ The non-whites did not have voting rights.

Condition of Native Black People

- They were forbidden from living in white areas.
- They could work in white areas only if they had a permit.
- Trains, buses, taxis, hotels, hospitals, schools and colleges, libraries, swimming pools, public toilets were all separate for the whites and blacks.
- This was called segregation.
- They could not even visit the churches where the whites worshipped.
- Blacks could not form associations or protest against the terrible treatment.

Since 1950, the blacks, coloured and Indians fought against the apartheid system.

They launched protest marches and strikes.

The African National Congress (ANC) was the umbrella organisation that led the struggle against the policies of segregation.

This included many workers' unions and the Communist Party.

- Many sensitive whites also joined the ANC to oppose apartheid and played a leading role in this struggle.
- Several countries denounced apartheid as unjust and racist.
- But the white racist government continued to rule by detaining, torturing, and killing thousands of black and coloured people.

Towards a new Constitution

- ◇ As protests and struggles against apartheid had increased, the government realised that they could no longer keep the blacks under their rule through repression.

- The white regime changed its policies.
 - Discriminatory laws were repealed.
- Ban on political parties and restrictions on the media were lifted.
 - After 28 years of imprisonment, Nelson Mandela walked out of the jail as a free man.
- Finally, at midnight of 26 April 1994, the new national flag of the Republic of South Africa was unfurled marking the newly born democracy in the world.
- The apartheid government came to an end, paving way for the formation of a multi-racial government.

After the Emergence of the new Democratic South Africa

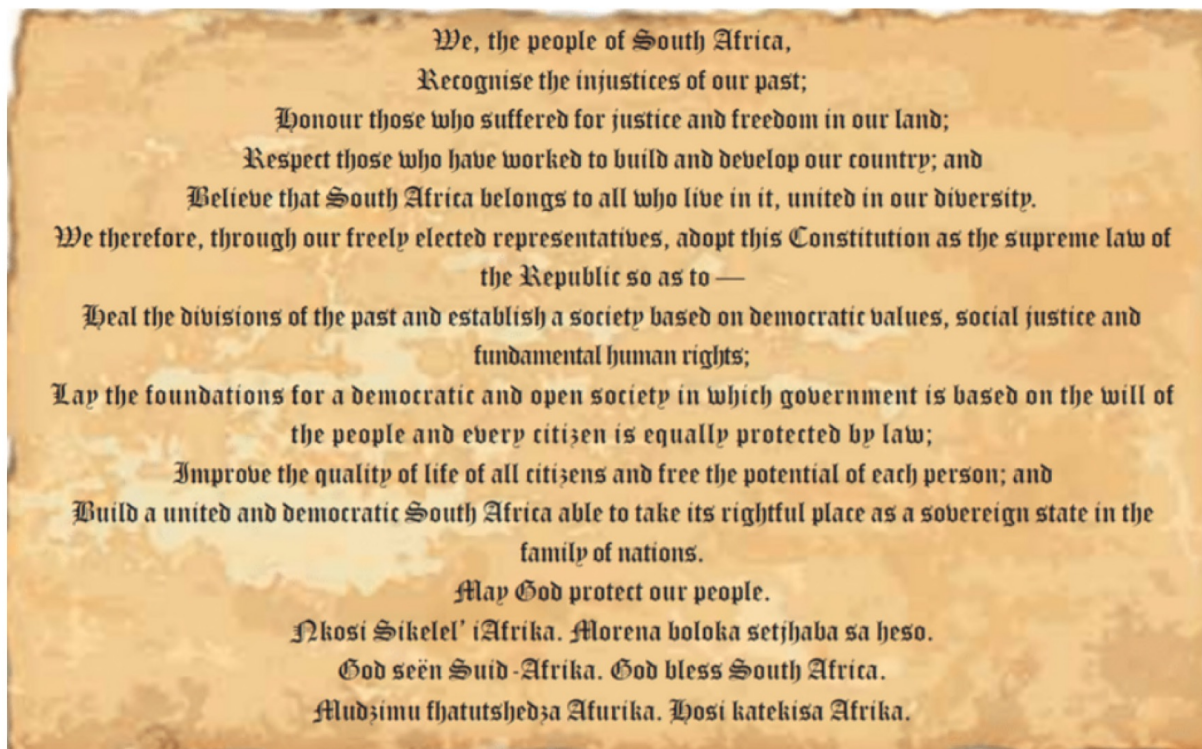
- Black leaders appealed to fellow blacks to forgive the whites for the atrocities they had committed while in power.
- They said let us build a new South Africa based on equality of all races and men and women, on democratic values, social justice and human rights.

The party that ruled through oppression and brutal killings and the party that led the freedom struggle sat together to draw up a common constitution.

After two years of discussion and debate they came out with one of the finest constitutions the world has ever had.

This constitution gave to its citizens the most extensive rights available in any country.

- They agreed that everybody should become part of the solution, whatever they might have done or represented in the past.
- The preamble to the South Africa Constitution sums up this spirit.



- The South African Constitution inspires democrats all over the world.
- What made this change possible was the determination of the people of South Africa to work together, to transform bitter experiences into the binding glue of a rainbow nation.

Why do we need a Constitution?

The South African example is a good way to understand why we need a Constitution and what do Constitution do.

The oppressor and the oppressed in this new democracy were planning to live together as equals.

It was not going to be easy for them to trust each other.

They had their fears.

They wanted to safeguard their interests.

The black majority was keen to ensure that the democratic principle of majority rule was not compromised.

They wanted substantial social and economic rights.

The white minority was keen to protect its privileges and property.

After long negotiations both parties agreed to a compromise

- The whites agreed to the principle of majority rule and that of one person to vote.
- They also agreed to accept some basic rights for the poor and the workers.
- The blacks agreed that majority rule would not be absolute.
- They agreed that the majority would not take away the property of the white minority.

Even if they managed to trust each other, what was the guarantee that this will not be broken in future?

The only way to build and maintain trust in such a situation is to write down some rules of the game that everyone would abide by.

- > These rules lay down how the rulers are to be chosen in future.
- > These rules also determine what the elected governments are empowered to do and what they cannot do.
- > Findly these rules decide the rights of the citizen.
- > These rules will work only if the winner cannot change them very easily.
- > This set of basic rules is called a **Constitution**.
- > Thus, the constitution of a country is a set of written rules that are accepted by all people living together in a country.
- > Constitution is the supreme law that determines the relationship among people living in a territory (called citizens) and also the relationship between the people and government.

A constitution does many things :

- First, it generates a degree of trust and coordination that is necessary for different kind of people to live together.
- Second, it specifies how the government will be constituted, who will have power to take which decisions.
- Third, it lays down limits on the powers of the government and tells us what the rights of the citizens are.
- Fourth, it expresses the aspirations of the people about creating a good society.
- All countries that have constitutions are not necessarily democratic.
- But all countries that are democratic will have constitutions.
- After the war of Independence against Great Britain, the Americans gave themselves a constitution.
- After the Revolution, the French people approved a democratic constitution.
- ◇ Since then it has become a practise in all democracies to have a written constitution.

Making of the Indian Constitution

- Like South Africa, India's Constitution was also drawn up under very difficult circumstances.
- The making of the constitution for a huge and diverse country like India was not an easy affair.

The country was born through a partition on the basis of religious differences

The British had left it to the rulers of the princely states to decide whether they wanted to merge with India or with Pakistan or remain independent.



- The merger of these princely states was a difficult and uncertain task.
- When the constitution was being written, the future of the country did not look as secure as it does today.
- The makers of the constitution had anxieties about the present and the future of the country.

The Path to Constitution

Despite all these difficulties, there was one big advantage for the makers of the Indian Constitution.

Unlike South Africa, they did not have to create a consensus about what a democratic India should look like.

- Much of this consensus had evolved during the freedom struggle.
- ▶ Our national movement was not merely a struggle against a foreign rule.
- ▶ It was also a struggle to rejuvenate our country and to transform our society and politics.
- ▶ There were sharp differences of opinion within the freedom struggle about the path India should take after Independence.
- ▶ Such differences exist even today.
- ▶ Yet some basic ideas had come to be accepted by almost everyone.
- ▶ As far back as in 1928, Motilal Nehru and eight other Congress leaders drafted a constitution for India.
- ▶ In 1931, the resolution at the Karachi session of the Indian National Congress dwelt on how independent India's constitution should look like.
- ▶ Both these documents were committed to the inclusion of **universal adult franchise**, **right to freedom and equality** and to protecting the **rights of minorities** in the constitution of independent India.

Thus some basic values were accepted by all leaders much before the Constituent Assembly met to deliberate on the Constitution.

Experience from Colonial Rule

- ✧ The familiarity with political institutions of colonial rule also helped develop an agreement over the institutional design.
- ✧ The British rule had given voting rights only to a few.
- ✧ On that basis the British had introduced very weak legislatures.
- ✧ Elections were held, but these were not fully democratic.
- ✧ But the experience gained by Indians in the working of the legislative institutions proved to be very useful for the country in setting up its own institutions.

That is why the Indian constitution adopted many institutional details and procedures from colonial laws like the Government of India Act, 1935.



Years of thinking and deliberation on the framework of the constitution had another benefit.

Our leaders gained confidence to learn from other countries, but on our own terms.

- Many of our leaders were inspired by the ideals of French Revolution.
- The practise of parliamentary democracy in Britain.
- The Bill of Rights in the US.
- The socialist revolution in Russia.

Yet they were not simply imitating what others had done.

At each step they were questioning whether these things suited our country.

The Constituent Assembly

- The drafting of the document called the constitution was done by an assembly of elected representatives called the Constituent Assembly.
- Elections to the Constituent Assembly were held in July 1946.
- Its first meeting was held in December 1946.
- Soon after, the country was divided into India and Pakistan.

The Constituent Assembly that wrote the Indian constitution had 299 members.

The Assembly adopted the Constitution on 26 November 1949 but it came into effect on 26 January 1950.

To mark this day we celebrate January 26 as Republic Day every year.

◇ Why should we accept the Constitution made by this Assembly more than fifty years ago?

- Over the last half a century, several groups have questioned some provisions of the Constitution.
- But no large social group or political party has ever questioned the Constitution itself.
- This is an unusual achievement for any constitution.
- The second reason for accepting the Constitution is that the Constituent Assembly represented the people of India.

- The Assembly was dominated by the Indian National Congress, the party that led India's freedom struggle.
- But the Congress itself included a variety of political groups and opinions.
- The Assembly had many members who did not agree with the Congress.
- In social terms too, the Assembly represented members from different language groups, castes, classes, religions and occupations

- ✧ Finally, the manner in which the Constituent Assembly worked gives sancity to the Constitution.
- ✧ Constituent Assembly worked in a systematic, open and consensual manner.
- ✧ First some basic principles were decided and agreed upon.
- ✧ Then a Drafting Committee chaired by Dr. B.R. Ambedkar prepared a draft constitution for a discussion.
- ✧ Several rounds of through discussion took place on the Draft Constitution, clause by clause.
- ✧ More than two thousand amendments were considered.
- ✧ The members deliberated for 114 days spread over three years.
- ✧ Every document presented and every word spoken in the Constituent Assembly has been recorded and preserved.
- ✧ These are called 'Constituent Assembly Debates'.
- ✧ When printed, these debates are 12 bulky volumes!

These are used to interpret the meaning of the Constitution.

Guiding Values of the Indian Constitution

In this book we shall study the exact provisions of the Constitution on different subjects.

At this stage let us begin by understanding the overall philosophy of what our Constitution is all about

We can do this in 2 ways

We can understand it by reading the views of some of the major leaders of the Constituent Assembly.

We can read what the Constitution says about its own philosophy.

Preamble

The Dream and the Promise

- Not the part of constituent assembly.
- He was not a member of the Constituent Assembly.
- Yet there were many members who followed his vision.

Years ago, writing in his magazine Young India in 1931, he had spelt out what he wanted the Constitution to do :

I shall strive for a constitution which will release India from all thralldom and patronage ... I shall work for an India in which the poorest shall feel that it is their country in whose making they have an effective voice; an India in which there shall be no high class and low class of people; an India in which all communities shall live in perfect harmony. There can be no room in such an India for the curse of untouchability or the curse of the intoxicating drinks and drugs. Women will enjoy the same rights as men ... I shall be satisfied with nothing else.



- This dream of an India that has eliminated inequality was shared by Dr. Ambedkar, who played a key role in the making of the Constitution but he had a different understanding of how inequalities could be removed.
- He often bitterly criticised Mahatma Gandhi and his vision.
- In his concluding speech to the Constituent Assembly he started his anxiety very clearly :

On the 26th of January 1950 we are going to enter a life of contradictions. In politics we will have equality and in social and economic life we will have inequality. In politics we will be recognising the principle of one man one vote and one vote one value. In our social and economic life, we shall, by reason of our social and economic structure, continue to deny the principle of one man one value. How long shall we continue to live this life of contradictions? How long shall we continue to deny equality in our social and economic life? If we continue to deny it for long, we will do so only by putting our political democracy in peril.

- Finally let us turn to Jawaharlal Nehru giving his famous speech to the Constituent Assembly at the stroke of midnight on August 15, 1947 :

Long years ago we made a *tryst with destiny*, and now the time comes when we shall redeem our pledge, not wholly or in full measure, but very substantially. At the stroke of the midnight hour, when the world sleeps, India will awake to life and freedom. A moment comes, which comes but rarely in history, when we step out from the old to the new, when an age ends, and when the soul of a nation, long suppressed, finds utterance. It is fitting that at this solemn moment we take the pledge of dedication to the service of India and her people and to the still larger cause of humanity ...

Freedom and power bring responsibility. The responsibility rests upon this Assembly, a sovereign body representing the sovereign people of India. Before the birth of freedom we have endured all the pains of labour and our hearts are heavy with the memory of this sorrow. Some of those pains continue even now. Nevertheless, the past is over and it is the future that beckons to us now.

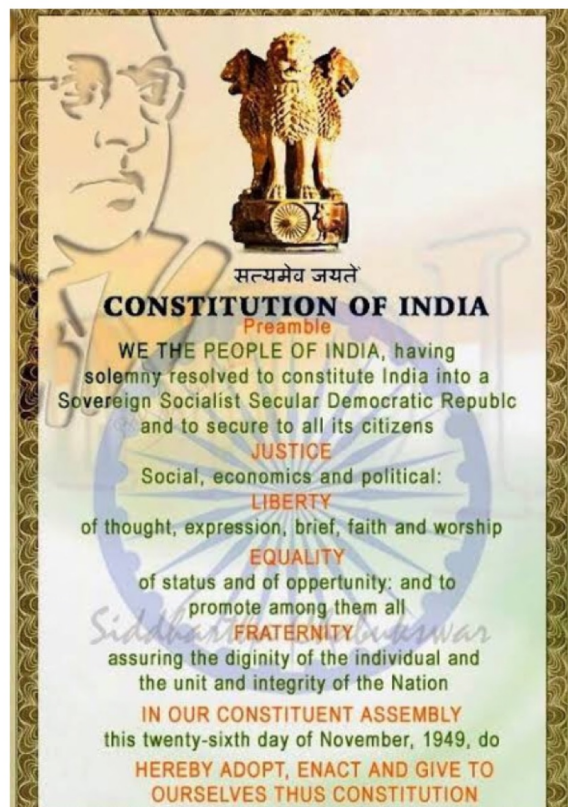
That future is not one of ease or resting but of incessant striving so that we may fulfil the pledges we have so often taken and the one we shall take today. The service of India means the service of the millions who suffer. It means the ending of poverty and ignorance and disease and inequality of opportunity. The ambition of the greatest man of our generation has been to wipe every tear from every eye. That may be beyond us, but as long as there are tears and suffering, so long our work will not be over.

Philosophy of the Constitution

- Values that inspired and guided the freedom struggle and were in turn nurtured by it, formed the foundation for India's democracy.
- These values are embedded in the Preamble of the Indian Constitution.
- They guide all the 50 articles of the Indian Constitution.

What is Preamble ?

- ▷ The Constitution begins with a short statement of its basic values.
- ▷ This is called the Preamble to the constitution.
- ▷ Taking inspiration from American model, most countries in the contemporary world have chosen to begin their constitutions with a preamble.
- ▷ The Preamble of the Constitution reads like a poem on democracy.
- ▷ It contains the philosophy on which the entire Constitution has been built.
- ▷ It provides a standard to examine and evaluate any law and action of government, to find out whether it is good or bad.
- ▷ It is the soul of the Indian Constitution.



WE, THE PEOPLE OF INDIA

The constitution has been drawn up and enacted by the people through their representatives, and not handed down to them by a king or any outside powers.

SOVEREIGN

People have supreme right to make decisions on internal as well as external matters. No external power can dictate the government of India.

SOCIALIST

Wealth is generated socially and should be shared equally by society. Government should regulate the ownership of land and industry to reduce socio-economic inequalities.

SECULAR

Citizens have complete freedom to follow any religion. But there is no official religion. Government treats all religious beliefs and practices with equal respect.

DEMOCRATIC

A form of government where people enjoy equal political rights, elect their rulers and hold them accountable. The government is run according to some basic rules.

REPUBLIC

The head of the state is an elected person and not a hereditary position.

JUSTICE

Citizens cannot be discriminated on the grounds of caste, religion and gender. Social inequalities have to be reduced. Government should work for the welfare of all, especially of the disadvantaged groups.

LIBERTY

There are no unreasonable restrictions on the citizens in what they think, how they wish to express their thoughts and the way they wish to follow up their thoughts in action.

EQUALITY

All are equal before the law. The traditional social inequalities have to be ended. The government should ensure equal opportunity for all.

FRATERNITY

All of us should behave as if we are members of the same family. No one should treat a fellow citizen as inferior.



Institutional Design

- A constitution is not merely a statement of values and philosophy.
- As we noted above, a constitution is mainly about embodying these values into institutional arrangements.
- Much of the document called the Constitution of India is about these arrangements.
- It is a very long and detailed document.

Constitutional amendments

- Constitution needs to be amended quite regularly to keep it updated.
- Those who crafted the Indian Constitution felt that it has to be in accordance with people's aspirations and changes in society.
- They did not see it as a sacred, static and unalterable law.
- So, they made provisions to incorporate changes from time to time.
- These changes are called constitutional amendments.
- Like any Constitution, the Indian Constitution lays down a procedure for choosing persons to govern the country.
- It defines who will have how much power to take which decisions.
- And it puts limits to what the government can do by providing some rights to the citizen that cannot be violated.

H.W.

Apartheid: The official policy of racial separation and ill treatment of blacks followed by the government of South Africa between 1948 and 1989.

Clause: A distinct section of a document.

Constituent Assembly: An assembly of people's representatives that writes a constitution for a country.

Constitution: Supreme law of a country, containing fundamental rules governing the politics and society in a country.

Constitutional amendment: A change in the constitution made by the supreme legislative body in a country.

Draft: A preliminary version of a legal document.

Philosophy: The most fundamental principles underlying one's thoughts and actions.

Preamble: An introductory statement in a constitution which states the reasons and guiding values of the constitution.

Treason: The offence of attempting to overthrow the government of the state to which the offender owes allegiance.

Tryst: A meeting or meeting place that has been agreed upon.

